

inclusion of specific electronic transmission logs where the court credits the attorney's sworn admission of fault. *Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 442-443.

Plaintiff contends that counsel's failure to verify the court docket from January until May 2026, combined with the submission of a second unfileable answer in May without verifying the default status, constitutes repeated, systemic office neglect rather than an excusable oversight. While Plaintiff's characterization of counsel's performance as inexcusable neglect is factually accurate, the distinction between "excusable" and "inexcusable" neglect is irrelevant under the mandatory provision of C.C.P. Section 473(b). Regardless of how unreasonable or inexcusable the attorney's neglect was, "so long as the attorney affidavit of fault shows the error was the fault of the attorney rather than the client." (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 57.)

Plaintiff argues that she should not be prejudiced by a second default because she already cooperated in late 2025 by stipulating to set aside Interstate Auto's first default, and Defendant thereafter missed its clear, court-ordered deadline. While the Court appreciates Plaintiff's prior cooperation and agrees that deadlines must be taken seriously, a party's statutory right to relief from default under C.C.P. Section 473(b) is not waived or exhausted by a prior stipulation.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505680	CORIA VS RIVERSIDE INN	MOTION TO STRIKE

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CVRI2505680	CORIA VS RIVERSIDE INN	DEMURRER

Tentative Ruling: Defendants Riverside Inn and Value Hotels Corp.'s Demurrer as to the First, Third, and Fourth Causes of Action is sustained with leave to amend within 20 days.

Defendants' Motion to Strike the punitive damages allegations and prayer, and the request for attorneys' fees are granted.

A demurrer tests the legal sufficiency of the complaint. The court accepts as true all material facts properly pleaded, but not contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The complaint is given a reasonable interpretation and read as a whole. (*Id.*) The question is whether the pleading states facts sufficient to constitute a cause of action. (*Id.*; *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.) Leave to amend should be granted if there is a reasonable possibility that any defect can be cured; the burden of demonstrating such a possibility rests on the plaintiff. (*Blank, supra*, 39 Cal.3d at 318; *Aubry, supra*, 2 Cal.4th at 967.)

First Cause of Action – Battery